

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

VIRGINIA C CHATHAM,

Petitioner

VS.

REGGIO HEARN,

Respondent

) Case Number: FDI-23-798094

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: STAY TRIAL AND PRE-TRIAL MOTIONS PENDING APPEAL; OST  
IN THE ALTERNATE

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the  
Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner Virginia C. Chatham and Respondent Reggio Hearn.
- 2) On 5/20/26, Petitioner filed an ex parte Request for Order seeking a stay on all pre-trial hearings and trial (set for 7/6/26 – 7/14/26) pending appeal of the Court’s order disqualifying Respondent’s counsel, which Respondent filed 5/11/26, or an order shortening time in the alternative. Petitioner filed a supportive Memorandum of Points and Authorities (file dated 5/19/26).
- 3) Respondent filed a Responsive Declaration in opposition to Petitioner’s requests (file dated 5/19/26). Respondent believes that staying all pre-trial hearings and trial is premature and should be determined after the 6/25/26 hearing on Respondent’s motion for relief from the Court’s disqualification order. Respondent further asserts that there are no grounds to continue pre-trial discovery deadlines. Respondent’s position is that Petitioner’s original disqualification motion was simply a tactic to delay trial.

- 1 4) On 5/20/26, Petitioner filed a Reply Declaration reiterating her position that a stay is necessary  
2 because Respondent filed a Notice of Appeal on 5/11/26, which stays the Court's order  
3 disqualifying Respondent's counsel. Petitioner opposes conducting pre-trial hearings and  
4 discovery with an opposing counsel that the Court disqualified. Petitioner asserts that discovery  
5 should be stayed and reopened once new trial dates are set as continuing discovery on business  
6 valuations and income available for support at this time will result in outdated information for  
7 trial.
- 8 5) On 5/20/26, the Court granted Petitioner's request for an order shortening time and set the matter  
9 for hearing on 6/4/26. The Court stated no further briefing is necessary.
- 10 6) On 6/1/26, Respondent filed a Responsive Declaration reiterating his position that staying all pre-  
11 trial hearings and trial is premature and should be determined after the 6/25/26 hearing on  
12 Respondent's motion for relief from the Court's disqualification order. Respondent reasserts that  
13 there is no good cause to continue or extend discovery, of which the cutoff date is 6/8/26.  
14 Respondent states that if the disqualification order is upheld on 6/25/26, Respondent will remain  
15 ready to proceed to trial with new counsel.

16 **B. Findings and Order**

- 17 1) Petitioner's request for a stay on all pre-trial hearings and trial (set for 7/6/26 – 7/14/26) pending  
18 appeal of the Court's order disqualifying Respondent's counsel is GRANTED.
- 19 2) All proceedings in this matter are hereby stayed pending resolution of Respondent's appeal filed  
20 5/11/26.
- 21 3) Counsel for Petitioner shall prepare the Findings and Order After Hearing.
- 22 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within  
23 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other  
24 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule  
25 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the  
26 proposed order after hearing directly to the court. Failure to submit the order after hearing within  
27 10 days may allow the other party to prepare a proposed order and submit it to the court in  
28 accordance with CA Rules of Court, Rule 5.125(d).
- 29